

THE NCA HUB

Examination Preparation

CANADIAN CIVIL PROCEDURE

COMPREHENSIVE STRATEGIC NOTES

Aligned with the NCA Civil Procedure Syllabus (Revised 2024)

Anchored in: Rules of Civil Procedure (Ontario), R.R.O. 1990, Reg. 194

Open-Book | 3 Hours | 100 Marks | Pass: 50%

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Scope and Currency

These Strategic Notes are prepared with reference to the NCA Civil Procedure Syllabus revised in 2024 and confirmed as current at the time of writing. The default jurisdiction throughout this document is Ontario, consistent with the NCA syllabus, but candidates registered to practise in another Canadian jurisdiction may use the Rules and statutes of that jurisdiction provided they identify them precisely on the examination.

How to Use These Notes

These Strategic Notes provide comprehensive, exam-focused coverage of every testable topic on the NCA Civil Procedure syllabus (revised 2024). They are designed to function as your primary open-book reference document during the examination - concise enough to navigate quickly, dense enough to answer with.

Parameter	Detail
Format	Open-book. Hard-copy notes only - no electronic devices, tablets, or phones. Online exams use a secure browser-based platform.
Duration	3 hours (180 minutes)
Pass Mark	50% - pass/fail grading
Total Marks	100
Default Jurisdiction	Ontario: Rules of Civil Procedure (R.R.O. 1990, Reg. 194); Limitations Act, 2002; Courts of Justice Act; Class Proceedings Act, 1992. Candidates from other provinces may use their own Rules if clearly identified.
Question Style	Problem-based fact patterns. The official 2022 sample exam used a single fact pattern with five questions (4 × 20-mark essay/problem questions + 1 × 10 sub-question True/False).
Citation Requirement	The syllabus expressly warns: "Reference must be made to relevant materials - rules, cases, codes, commentaries - and failing to do so will negatively affect your grade."
Self-Taught	The course has no required textbook. The Rules themselves are the primary required materials, supplemented by statutes, leading cases, and commentaries.

The Three-Step NCA Method

- **STEP 1 - ISSUE IDENTIFICATION:** Read the question first, then read the facts. Mark every procedural issue in the margin before writing. A typical Civil Procedure question embeds 4–6 sub-issues. Missing issues lose marks regardless of how well you answer the issues you spot.
- **STEP 2 - RULE PLUS CASE PLUS RULE NUMBER:** For every issue, state the rule with the specific case authority and the specific Rule number. "Under Rule 20.04(2.1), the court has enhanced fact-finding powers on a summary judgment motion (*Hryniak v Mauldin*, 2014 SCC 7)." Bare doctrine without rule numbers and case names earns half marks.
- **STEP 3 - APPLY EVERY RULE TO THE FACTS:** Connect every rule to specific facts in the question. Use "because" to force the connection. "Because the recording was made by a former employee with no continuing duty of confidentiality, it is producible under Rule 30.02(1) and not subject to litigation privilege." Bare conclusions earn nothing - analysis earns the bulk of marks.

 EXAM TIP - THE NCA EXAMINER'S OWN GUIDANCE

The NCA's official guide How to Answer Fact-based Law Exam Questions states: "It is the analysis in between [the law and the conclusion] which will determine the bulk of your performance on the exam." Use IRAC for every sub-issue, not just for the question as a whole. State a roadmap sentence at the top of each answer ("To resolve this question, three issues arise: [a], [b], and [c].") so the marker can follow your structure.

Master Civil Procedure Framework

Every Civil Procedure problem reduces to the same five sequential questions. Work through them in order - the answer to an earlier question often forecloses or reframes a later one (no jurisdiction means no live limitations question; pleadings struck under Rule 21 ends the case before discovery).

The Five Civil Procedure Questions	What to Apply
1. JURISDICTION & PARTIES - Does the right court have jurisdiction over this dispute and over these parties?	Constitution Act 1867 ss 92(13)–92(14); CJA s 11(2); Rules 16 (service in jurisdiction), 17 (service outside Ontario), 13 (intervention), 14 (commencement of proceedings); Club Resorts Ltd v Van Breda 2012 SCC 17 (four presumptive connecting factors); forum non conveniens; Sinclair v Venezia Turismo, 2025 SCC 27 refining Van Breda; standing - Downtown Eastside 2012 SCC 45; capacity - Rule 7.
2. COMMENCEMENT & PLEADINGS - Has the claim been properly commenced and pleaded within time?	Limitations Act 2002 ss 4, 5, 7, 15; Grant Thornton 2021 SCC 31 (plausible inference of liability); Rules 14 (originating processes), 18 (defence), 25 (form of pleadings), 26 (amendment), 27–29 (counter, cross, third party); 76 (simplified procedure); pleadings particulars - Moosa, Copland; punitive damages - Whiten v Pilot Insurance.
3. PRE-TRIAL CONDUCT - How is information exchanged and how are interlocutory issues resolved?	Rule 29.1 (discovery plan); Rule 29.2 (proportionality); Rule 30 (documentary discovery); Rule 30.1 (deemed undertaking); Rule 31 (oral discovery); Rule 33 (medical exams); Rule 53.03 (experts); privilege - Pritchard, Blank, Lizotte, Smith v Jones, Union Carbide, AM v Ryan; Rules 24.1 (mandatory mediation), 50 (pre-trial); Rule 37 (motions); Rule 39 (motion evidence); RJR-MacDonald (injunctions).
4. DISPOSITION - Will the matter resolve through trial, summary disposition, dismissal, default, or settlement?	Rule 19 (default); Rule 20 (summary judgment) - Hryniak 2014 SCC 7 "culture shift"; Rule 21 (strike pleadings) - Imperial Tobacco "plain and obvious"; Rule 22 (special case); Rule 23 (discontinuance); Rule 24 (dismissal for delay); Rule 25.11 (strike scandalous, etc); Rule 2.1 (frivolous on paper); Rules 38 (applications), 46–47 (jury trial); Rule 49 (settlement offers); Rule 51 (admissions).
5. COSTS, REMEDIES & APPEALS - Who pays, what was won, what can be appealed?	CJA s 131; Rules 56 (security for costs), 57 (costs principles), Tariff A; Rule 49 cost consequences; Solicitors Act; Anderson v Alberta (advance costs); CJA s 6 (Court of Appeal), s 19 (Divisional Court); Rules 61–63 (appeals, stays); Penner 2013 SCC 19 (issue estoppel).

⚠ EXAM TIP - NAVIGATE EVERY FACT PATTERN BY THIS FRAMEWORK

When you read a Civil Procedure fact pattern, walk through the five questions in order. The official 2022 NCA sample exam Q1 (commencing proceedings against Acme), Q2 (ADR), Q3

(discovery), and Q4 (summary judgment / striking) map directly onto Questions 2, 3, and 4 of this framework. Q5 (True/False sub-questions) tests Questions 1, 2, 3, and 5 in compressed form.

Master Statutory Source Roadmap

Civil Procedure in Ontario rests on a layered statutory and rule-based framework. The Rules govern procedure inside the courts; the Limitations Act governs when claims must be brought; statutes such as the Class Proceedings Act and the Courts of Justice Act govern specific procedural mechanisms and the structure of the courts themselves. These are the sources you must cite by name (and, where the syllabus directs, by section or rule number) on the examination.

Source	What It Governs
Constitution Act, 1867 (UK), 30 & 31 Vict, c 3 - ss 92(13), 92(14), 96–101	Provincial jurisdiction over property and civil rights and over the administration of justice in the province; federal appointment of superior court judges (s 96).
Courts of Justice Act, RSO 1990, c C.43	Structure of Ontario's courts (Court of Appeal, Superior Court of Justice, Small Claims Court). s 11(2) (SCJ as a superior court of inherent jurisdiction); s 87 (Associate Judges, formerly Masters); s 101 (injunctions); s 131 (costs in court's discretion); s 138 (procedural orders to be liberally construed).
Rules of Civil Procedure, RRO 1990, Reg 194	The procedural code in Ontario. Roughly 76 numbered Rules covering everything from definitions (Rule 1.03), proportionality (Rule 1.04(1.1)), pleadings (Rules 14–29), discovery (Rules 29.1–33), motions (Rule 37), summary judgment (Rule 20), striking pleadings (Rule 21), trials (Rules 38, 46–47), costs (Rules 56–58), and appeals (Rules 61–63).
Limitations Act, 2002, SO 2002, c 24, Sch B	Basic two-year limitation period (s 4); discoverability (s 5); ultimate fifteen-year limitation (s 15); tolling for minors and incapacity (s 6, 7); special rules for assault and sexual assault (s 16); transition rules for pre-2004 claims.
Class Proceedings Act, 1992, SO 1992, c 6 (as amended by Smarter and Stronger Justice Act, 2020)	Five certification criteria (s 5(1)); superiority and predominance test for the preferable procedure analysis (s 5(1.1), in force October 1, 2020); settlement approval (s 27.1); costs (s 31); fees and disbursements (s 32–33). Bill 161 reforms apply to actions commenced on or after October 1, 2020.
Federal Courts Act, RSC 1985, c F-7	Structure of the Federal Court and Federal Court of Appeal; jurisdiction over federal subject matter (immigration, intellectual property, federal Crown actions, admiralty).
Federation of Law Societies of Canada, Model Code of Professional Conduct	Lawyer's professional obligations within the litigation process (rr 3.2 - quality of service; 5.1 - advocate; 7.2 - communications with another lawyer).
Arbitration Act, 1991, SO 1991, c 17	Domestic arbitration; s 7 mandatory stay of court proceedings where there is an arbitration agreement

Source	What It Governs
	(subject to limited exceptions).
Commercial Mediation Act, 2010, SO 2010, c 16, Sch 3	Statutory framework for commercial mediations in Ontario.
Solicitors Act, RSO 1990, c S.15	Contingency fees (s 28.1); assessment of bills (ss 2–10); solicitor and client costs.

Chapter 1: Background to the Civil Dispute Resolution Process

Civil procedure is the body of rules that governs how disputes between private parties (or between private parties and the State acting in a private-law capacity) are resolved through the courts. Distinguished from criminal procedure (where the State prosecutes individuals), administrative procedure (where tribunals adjudicate regulatory disputes), and constitutional procedure (where courts interpret the Constitution), civil procedure is the workhorse of everyday justice - the framework within which contracts are enforced, torts compensated, property disputes resolved, family disputes adjudicated, and class wrongs remedied.

1.1 Three Purposes of the Civil Justice System

Civil procedure serves three interlocking purposes:

- **Dispute resolution.** Providing a peaceful, authoritative, and final means of resolving disputes between private parties so that disagreements do not require self-help or escalate into broader social conflict.
- **Behaviour modification.** By making remedies available to those wronged, the civil justice system deters wrongdoers and encourages parties to bargain in the shadow of the law ("if you breach this contract, I will sue and you will pay damages plus costs").
- **Just outcomes.** Not merely process, but substantively just resolution - outcomes consistent with the rule of law, public values, and the constitutional framework. *Hryniak v Mauldin* makes this purpose explicit by reframing access to justice as access to substantively just outcomes, not merely access to a courtroom.

1.2 The Access-to-Justice Crisis

Civil procedure cannot be understood without acknowledging the access-to-justice crisis the syllabus identifies as the framing context for the entire course. Trevor Farrow's research for the Canadian Forum on Civil Justice (Everyday Legal Problems and the Cost of Justice in Canada, 2016) found that nearly half of all adult Canadians experience an everyday legal problem in any given three-year period, and that the legal system rarely resolves them. Most Canadians who experience legal problems do not consult a lawyer and do not turn to the courts. The gap between rights and remedies - between what the law promises and what ordinary people can actually obtain - is the systemic problem the courts and the procedural reforms of the past decade are trying to close.

Hryniak v Mauldin, 2014 SCC 7, [2014] 1 SCR 87 - the "culture shift" decision

Facts: American investors (the Mauldin Group) invested USD 1.2 million with Robert Hryniak's Toronto-based Tropos Capital. The funds disappeared offshore. The investors sued Hryniak, his lawyer Peebles, and the law firm Cassels Brock for civil fraud and brought a Rule 20 motion for summary judgment.

Held (Karakatsanis J., unanimous): Summary judgment was properly granted against Hryniak. Trial was no longer the default model of adjudication; summary judgment had become "a

significant alternative model of adjudication."

The roadmap (paras 49–66): On a Rule 20 motion the judge first determines whether there is a genuine issue requiring a trial. There is no genuine issue if the motion record provides the evidence necessary to fairly and justly determine the dispute and summary judgment is timely, affordable, and proportionate. If a genuine issue appears, the judge then decides whether the need for a trial can be avoided by exercising the enhanced fact-finding powers under Rule 20.04(2.1) (weighing evidence, evaluating credibility, drawing reasonable inferences) or by hearing oral evidence under Rule 20.04(2.2). These powers are presumptively available unless their use would be against the interests of justice.

Significance: The decision called for a "culture shift" away from the traditional view that trial is the default model of adjudication. "Ensuring access to justice is the greatest challenge to the rule of law in Canada today" (para 1). Hryniak is cited in virtually every modern Canadian civil procedure decision and sits at the intersection of summary judgment, proportionality, and access-to-justice analysis.

Hryniak runs through this entire course like a thread. Wherever you see proportionality (Rule 1.04(1.1)), summary judgment (Rule 20), pre-trial case management (Rule 50, Rule 77), or access-to-justice analysis under the Class Proceedings Act, 1992, you are seeing the culture shift in action.

1.3 Process and Professionalism

The civil litigation process is not just rule-bound - it is also bound by the professional obligations of the lawyers who navigate it. The Federation of Law Societies of Canada Model Code of Professional Conduct (and its provincial enactments such as the Law Society of Ontario's Rules of Professional Conduct) imposes duties of competence (r 3.1), candour (r 5.1-2), encouragement of settlement (r 3.2-4), and fair dealing with opposing counsel (r 7.2). Most provincial codes specifically require lawyers to encourage their clients to compromise where compromise is reasonable (Model Code r 3.2-4: "A lawyer must advise and encourage the client to compromise or settle a dispute whenever it is possible to do so on a reasonable basis...").

Several Rules embed professionalism directly: Rule 4.06.1 (sworn statements, including the affidavit's signature requirements); Rule 4.1 (duty of an expert: to assist the court fairly, objectively, and non-partisanly - Form 53 acknowledgment of the expert's duty); and Rule 30.1 (the deemed undertaking - discovery information cannot be used outside the proceeding for which it was obtained).

△ EXAM TIP - FRAME EVERY ANSWER WITH PROPORTIONALITY

Rule 1.04(1.1): "In applying these rules, the court shall make orders and give directions that are proportionate to the importance and complexity of the issues, and to the amount involved, in the proceeding."

On any motion, any disposition question, any costs question, any discovery question - cite Rule 1.04(1.1) and reference Hryniak's culture shift. The framing is mandatory because proportionality is the lens through which Canadian civil procedure is now applied.